

Ramesh Chandra Gupta v. Kanpur Electricity Supply Company Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 January 2016 · Writ - C No. 42714 of 2010 · **Writ dismissed; petitioner relegated to s.127 / Supply Code forum.**

HEADNOTE

A writ challenging an Executive Engineer's 2010 theft-assessment demand was dismissed. The High Court held that if the consumer is dissatisfied with the demand, the remedy is an appeal under Section 127 of the Electricity Act, 2003 or the appropriate forum under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, a consumer of Kanpur Electricity Supply Company Ltd., sought quashing of the Executive Engineer's order dated 2 January 2010 recording theft of electricity and raising an assessment. That order followed directions in his earlier Writ Petition No. 56168 of 2009, decided on 27 September 2009. In August 2010 the Court allowed an amendment and directed reconnection on deposit of half of arrears of Rs 65,863, with future bills to be paid. The writ, filed in 2010, continued without an interim order.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternate remedy against theft assessment

HOLDING

A writ petition challenging an Executive Engineer's order recording theft of electricity and raising an assessment will not be examined on merits; the consumer must proceed under Section 127 of the Electricity Act, 2003 or before the appropriate forum under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ challenging an Executive Engineer's 2010 theft-assessment demand was dismissed. The High Court held that if the consumer is dissatisfied with the demand, the remedy is an appeal under Section 127 of the Electricity Act, 2003 or the appropriate forum under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 2 JANUARY 2010 THEFT FINDING AND ASSESSMENT DEMAND

Left to Section 127 or the Supply Code 2005 forum. ¶ 1